

STATE OF NEW YORK

8482--A

Cal. No. 213

2025-2026 Regular Sessions

IN ASSEMBLY

May 16, 2025

Introduced by M. of A. CRUZ, BRONSON, JACOBSON, SANTABARBARA, SAYEGH -- read once and referred to the Committee on Labor -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the workers' compensation law, in relation to prohibiting insurance carriers and employers from withholding certain benefits from injured workers based on attachment to the labor market

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph w of subdivision 3 of section 15 of the workers' compensation law, as amended by section 1 of subpart A of part NNN of chapter 59 of the laws of 2017, is amended to read as follows:

w. Other cases. In all other cases of permanent partial disability, the compensation shall be sixty-six and two-thirds percent of the difference between the injured employee's average weekly wages and [~~his or her~~] such injured employee's wage-earning capacity thereafter in the same employment or otherwise. Compensation under this paragraph shall be payable during the continuance of such permanent partial disability, [~~without the necessity for the claimant who is entitled to benefits at the time of classification to demonstrate ongoing attachment to the labor market, but~~] subject to reconsideration of the degree of such impairment by the board on its own motion or upon application of any party in interest however, all compensation payable under this paragraph shall not exceed (i) five hundred twenty-five weeks in cases in which the loss of wage-earning capacity is greater than ninety-five percent; (ii) five hundred weeks in cases in which the loss of wage-earning capacity is greater than ninety percent but not more than ninety-five percent; (iii) four hundred seventy-five weeks in cases in which the loss of wage-earning capacity is greater than eighty-five percent but not more than ninety percent; (iv) four hundred fifty weeks in cases in which the loss of wage-earning capacity is greater than eighty percent

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 but not more than eighty-five percent; (v) four hundred twenty-five
2 weeks in cases in which the loss of wage-earning capacity is greater
3 than seventy-five percent but not more than eighty percent; (vi) four
4 hundred weeks in cases in which the loss of wage-earning capacity is
5 greater than seventy percent but not more than seventy-five percent;
6 (vii) three hundred seventy-five weeks in cases in which the loss of
7 wage-earning capacity is greater than sixty percent but not more than
8 seventy percent; (viii) three hundred fifty weeks in cases in which the
9 loss of wage-earning capacity is greater than fifty percent but not more
10 than sixty percent; (ix) three hundred weeks in cases in which the loss
11 of wage-earning capacity is greater than forty percent but not more than
12 fifty percent; (x) two hundred seventy-five weeks in cases in which the
13 loss of wage-earning capacity is greater than thirty percent but not
14 more than forty percent; (xi) two hundred fifty weeks in cases in which
15 the loss of wage-earning capacity is greater than fifteen percent but
16 not more than thirty percent; and (xii) two hundred twenty-five weeks in
17 cases in which the loss of wage-earning capacity is fifteen percent or
18 less. For a claimant with a date of accident or disablement after the
19 effective date of ~~[the]~~ section one of subpart A of part NNN of chapter
20 fifty-nine of the laws of two thousand seventeen that amended this
21 subdivision, where the carrier or employer has provided compensation
22 pursuant to subdivision five of this section beyond one hundred thirty
23 weeks from the date of accident or disablement, all subsequent weeks in
24 which compensation was paid shall be considered to be benefit weeks for
25 purposes of this section, with the carrier or employer receiving credit
26 for all such subsequent weeks against the amount of maximum benefit
27 weeks when permanent partial disability under this section is deter-
28 mined. In the event of payment for intermittent temporary partial disa-
29 bility paid after one hundred thirty weeks from the date of accident or
30 disablement, such time shall be reduced to a number of weeks, for which
31 the carrier will receive a credit against the maximum benefit weeks. For
32 a claimant with a date of accident or disablement after the effective
33 date of ~~[the]~~ section one of subpart A of part NNN of chapter fifty-nine
34 of the laws of two thousand seventeen that amended this subdivision,
35 when permanency is at issue, and a claimant has submitted medical
36 evidence that ~~[he or she]~~ such claimant is not at maximum medical
37 improvement, and the carrier has produced or has had a reasonable oppor-
38 tunity to produce an independent medical examination concerning maximum
39 medical improvement, and the board has determined that the claimant is
40 not yet at maximum medical improvement, the carrier shall not receive a
41 credit for benefit weeks prior to a finding that the claimant has
42 reached maximum medical improvement, at which time the carrier shall
43 receive credit for any weeks of temporary disability paid to claimant
44 after such finding against the maximum benefit weeks awarded under this
45 subdivision. For those claimants classified as permanently partially
46 disabled who no longer receive indemnity payments because they have
47 surpassed their number of maximum benefit weeks, the following
48 provisions will apply:

49 (1) There will be a presumption that medical services shall continue
50 notwithstanding the completion of the time period for compensation set
51 forth in this section and the burden of going forward and the burden of
52 proof will lie with the carrier, self-insured employer or state insur-
53 ance fund in any application before the board to discontinue or suspend
54 such services. Medical services will continue during the pendency of any
55 such application and any appeals thereto.

(2) The board is directed to promulgate regulations that establish an independent review and appeal by an outside agent or entity of the board's choosing of any administrative law judge's determination to discontinue or suspend medical services before a final determination of the board.

§ 2. Section 15 of the workers' compensation law is amended to add a new subdivision 10 to read as follows:

10. Effect of attachment to labor market. Benefits or compensation otherwise due under this section shall not be withheld, diminished, or conditioned upon an injured worker's demonstration of attachment to the labor market.

§ 3. This act shall take effect immediately.